

1963 CHAPTER 52

An Act to increase the penalties for offences under section 5 of the Public Order Act 1936 and section 1 of the Public Meeting Act 1908. [31st July 1963]

BE IT ENACTED by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

1.—(1) A person guilty of an offence under section 5 of the Public Order Act 1936 (offensive words and behaviour in public places or at public meetings conducive to breach of the peace) or under section 1(1) of the Public Meeting Act 1908 (disorderly conduct designed to break up public meetings) shall be liable— Increased penalties for certain offences.
1 Edw. 8 & 1
Geo. 6. c. 6.
8 Edw. 7. c. 66.

(a) on summary conviction, to imprisonment for a term not exceeding three months or to a fine not exceeding £100, or to both;

(b) on conviction on indictment, to imprisonment for a term not exceeding twelve months or to a fine not exceeding £500, or to both.

(2) In section 7(2) of the said Act of 1936, for the words “any other offence under this Act” there shall be substituted the words “any offence under this Act other than an offence under section two or section five”; and in section 1(1) of the said Act of 1908 the words from “and shall” to the end are hereby repealed.

(3) This section does not apply to offences committed before the passing of this Act.

2.—(1) This Act may be cited as the Public Order Act 1963.

Short title
and extent.

(2) This Act does not extend to Northern Ireland.

1963 CHAPTER 53

An Act to amend the law relating to the protection of performers so as to enable effect to be given to a Convention entered into at Rome on 26th October 1961. [31st July 1963]

WHEREAS, with a view to the ratification by Her Majesty of the International Convention for the Protection of Performers, Producers of Phonograms and Broadcasting Organisations entered into at Rome on 26th October 1961, it is expedient to amend and supplement the Dramatic and Musical Performers' Protection Act 1958 (in this Act referred to as “the principal Act”): 6 & 7 Eliz. 2
c. 44

Be it therefore enacted by the Queen's Most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows:—

Performances to which principal Act applies.

1.—(1) The principal Act shall have effect as if for references therein to the performance of a dramatic or musical work there were substituted references to the performance of any actors, singers, musicians, dancers or other persons who act, sing, deliver, declaim, play in or otherwise perform literary, dramatic, musical or artistic works, and the definition contained in section 8 (1) of that Act of the expression “performance of a dramatic or musical work” (by which that expression is made to include a performance rendered or intended to be rendered audible by mechanical or electrical means) shall be construed accordingly.

(2) For the avoidance of doubt it is hereby declared that the principal Act applies as respects anything done in relation to a performance notwithstanding that the performance took place out of the United Kingdom, but this shall not cause anything done out of the United Kingdom to be treated as an offence.

Sales etc. of records made abroad.

2. For the purposes of paragraphs (b) and (c) of section 1 of the principal Act (by which sales of, and other dealings with, records made in contravention of the Act are rendered punishable), a record made in a country outside the United Kingdom directly or indirectly from or by means of a performance to which the principal Act applies shall, where the civil or criminal law of that country contains a provision for the protection of performers under which the consent of any person to the making of the record was required, be deemed to have been made in contravention of the principal Act if, whether knowingly or not, it was made without the consent so required and without the consent in writing of the performers.

Relaying of performances.

3.—(1) A person who, otherwise than by the use of a record or cinematograph film or the reception of a broadcast, knowingly causes a performance to which the principal Act applies, or any part of such a performance, to be transmitted without the consent in writing of the performers—

(a) to subscribers to a diffusion service; or

(b) over wires or other paths provided by a material substance so as to be seen or heard in public,

shall be guilty of an offence, and shall be liable, on summary conviction, to a fine not exceeding fifty pounds.

4 & 5 Eliz. 2 c. 74

(2) Section 48 (3) of the Copyright Act 1956 (which explains the meaning of references in that Act to the transmission of a work or other subject-matter to subscribers to a diffusion service) shall apply for the purposes of the preceding subsection as it applies for the purposes of that Act.

(3) Section 6 of the principal Act (which provides for special defences) shall have effect as if the preceding subsections were inserted immediately before that section, and that section and section 7 of the principal Act (which provides for the giving of consent on behalf of performers) shall have effect as if for the words "or broadcast" in each place where they occur there were substituted the words "broadcast or transmission".

4.—(1) Where—

Giving of
consent
without
authority.

(a) a record, cinematograph film, broadcast or transmission is made with the consent in writing of a person who, at the time of giving the consent, represented that he was authorised by the performers to give it on their behalf when to his knowledge he was not so authorised, and

(b) if proceedings were brought against the person to whom the consent was given, the consent would by virtue of section 7 of the principal Act afford a defence to those proceedings,

the person giving the consent shall be guilty of an offence, and shall be liable, on summary conviction, to a fine not exceeding fifty pounds.

(2) The said section 7 shall not apply to proceedings under this section.

5.—(1) This Act may be cited as the Performers' Protection Act 1963, and the principal Act and this Act may be cited together as the Performers' Protection Acts 1958 and 1963.

Citation,
construction,
commence-
ment and
extent.

(2) This Act shall be construed as one with the principal Act.

(3) This Act shall come into operation at the expiration of the period of one month beginning with the date of its passing, and shall apply only in relation to performances taking place after its commencement.

(4) It is hereby declared that this Act extends to Northern Ireland.

